

26STLC00963 26STLC00963

County: los-angeles

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Case Number: 26STLC00963 Hearing Date: July 1, 2026 Dept: 26

TENTATIVE RULING:

Defendant The Pep Boys Manny Moe

& Jack of California LLC's Motion to Vacate Default is granted. The default entered on March 20, 2026 and default judgment entered on April 13, 2026 are hereby vacated.

Defendant The Pep Boys Manny Moe

& Jack of California LLC is to file and serve its Answer to the Complaint within 20 days of this order.

Analysis:

On February 11, 2026, Plaintiff Ashley Citron ("Plaintiff") filed the instant collections action against Defendant The Pep Boys Manny Moe & Jack of California LLC ("Defendant"). Following Defendant's failure to file a responsive pleading, the Court entered its default on March 20, 2026, and default judgment on April 13, 2026.

Defendant filed the instant

Motion to Vacate Default on May 1, 2026. Plaintiff filed an opposition on June 5, 2026 and Defendant replied on June 17, 2026.

Discussion

Defendant moves for relief

from the default pursuant to Code of Civil Procedure section 473, subdivision (b). The Court initially addresses the fact that the Motion only

seeks relief from the entry of default, despite default judgment having been entered prior to the filing of the Motion. In its reply, Defendant also asks for relief from the judgment. Accordingly, the Court will consider this a Motion for relief from entry of default and default judgment.

It appears from the

moving papers and reply that Defendant is moving for relief under both the mandatory and discretionary provisions of this statute. Mandatory relief applies when the default is shown to be the fault of Defendant's attorney and the motion is brought within six months of the default judgment. (Code Civ.

Proc., § 473, subd. (b).) Relief under the discretionary provision must be sought within a reasonable time, no more than six months

after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the moving party's mistake, inadvertence, surprise or excusable neglect. (Code Civ. Proc., § 473, subd. (b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.)

The

Motion is supported by a declaration that refers to conduct by both Defendant and defense counsel. Due to a calendaring error, Defendant's claims adjuster did not send the case to defense counsel until March 16, 2026, which was two days before the deadline to respond to the Complaint. (Motion, Sutton Decl., ¶2.) Then, due to defense counsel's conflict check procedures, defense counsel was not retained until March 26, 2026.

(Motion, Sutton Decl., ¶2; An Decl., ¶¶6-7.) This combined delay, which is mostly attributable to Defendant and not counsel, demonstrates excusable neglect in Defendant's failure to respond prior to the entry of default. The Motion was also timely brought less than two months after the entry of default, and attaches a copy of Defendant's proposed answer. (Motion, An Decl., Exh. A.) The Court grants relief under the discretionary provision of § 473(b), and not based on attorney fault.

Plaintiff's

opposition requests an award of attorney's fees under the language of the statute that provides "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b), emphasis added.) It also cites subdivision (c)(1)(A), which allows the Court to "[i]mpose a penalty of no greater than one thousand dollars (\$1,000)

upon an offending attorney or party.” Plaintiff’s counsel declares that they billed \$2,800.00 to obtain default and default judgment, and to oppose the instant Motion. (Opp., Kirschner Decl., ¶18.) The Court is not inclined to award attorney’s fees under the latter provision. A penalty is not warranted for Defendant’s minimal delay in responding to the action. The Court also does not find an award attorney fees warranted. Costs may be determined at the conclusion of the litigation based on the prevailing party statutes. (See Code Civ. Proc., § 1032, 1033.5.)

Conclusion

Therefore, Defendant The Pep Boys Manny Moe & Jack of California LLC’s Motion to Vacate Default is granted. The default entered on March 23, 2026 and default judgment entered on April 13, 2026 are hereby vacated.

Defendant The Pep Boys Manny Moe & Jack of California LLC is to file and serve its Answer to the Complaint within 20 days of this order.

Moving party to give notice.